

1 defining something that is the word "vehicle" for the
2 purpose of the jury's use in this matter.

3 I find no harm nor prejudice against either
4 party in this case.

5 It is simply a neutral definition coming from
6 the Vehicle Code which defines vehicle and highway.

7 MR. ROSARIO: Inaccurate, Your Honor. You
8 enhanced it by adding that highways also indicates
9 street.

10 That is not in the actual black-letter law.
11 You enhanced the statement and you sent that back.

12 That is a direct influence over the Jury.

13 THE COURT: Sir, do you want to take a look
14 at this code section?

15 It says, "Highway includes street", close
16 quote.

17 MR. ROSARIO: Understood.

18 THE COURT: The answer to Jury request number
19 three, which provides, in pertinent part, "If our
20 finding is yes to question one in the verdict form and
21 our finding is no to question number two in the
22 verdict form, what are the implications of that for
23 the Defendant?" The answer is: Please follow the
24 instruction that follows question two.

25 I don't think I need to reiterate that
26 question.

27 "Please follow the instructions that follow
28 the yes-or-no query after question two."